

428 *The Trial of the Seven Bishops.*

King will, or will not, permit a Toleration, if either of these be disagreeable to the People, whether he may, or may not, it is against Law; for we are not to measure Things from any Truth they have in themselves, but from that Aspect they have upon the Government; for there may be every Tittle of a Libel true, and yet it may be a Libel still: So that I put no great Strefs upon that Objection, That the Matter of it is not False; and, for Sedition, it is that which every Libel carries in itself; and as every Trespass implies *Vi & Armis*, so every Libel against the Government carries in it Sedition, and all the other Epithets that are in the Information: This is my Opinion as to the Law in general.

I will not debate the Prerogatives of the King, nor the Privileges of the Subject; but as this Fact is, I think, these venerable Bishops did meddle with that which did not belong to them; they took upon them, in a Petitionary way, to contradict the actual Exercise of the Government, which, I think, no private particular Persons, or single Body, may do.

*Ld. Ch. Just.* Gentlemen of the Jury, Have you a mind to Drink before you go?

*Jury.* Yes, my Lord, if you please.

[*Wine was sent for by the Jury.*]

*Juryman.* My Lord, we humbly pray, that your Lordship would be pleas'd to let us have the Papers that have been given in Evidence.

*Ld.*